

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

Appellate No. SYN-CA4-26-CV-4103 · City Stay Reply

Filed February 5, 2026

The Guild's response narrows the dispute but does not eliminate the need for interim relief. Both parties agree that the City may regulate concrete logistical conditions, that officials may not consider viewpoint, and that the February 14 fair requires prompt decisions. They disagree over whether the injunction defines that boundary adequately and whether the City can collect the stable information needed to identify a scheduled program while review proceeds.

The Guild concedes that the operative terms can be clarified and that Rule 65 security can be addressed. Those are material components of the order under appeal. The City need not prove that every aspect of preliminary protection will disappear to show likely success on relief affecting the injunction's enforceability and administration. A stay can be tailored to the correction likely to occur.

The City also does not ask urgency to substitute for the *Nken* factors. It has documented that the district-first application was made and denied, supplied the earlier filings, and explained the district court's reasons. The immediate calendar bears on irreparable injury and equitable design. It does not alter the burden of persuasion.

The requested relief remains temporary. The complaint will continue in the district court, and this interlocutory appeal will not decide permanent liability. A clear short-term framework can protect expression without leaving municipal personnel to infer operative commands from the opinion's discussion.

Corrective Relief Is Likely and Material

The Guild recasts the ordinance as if compensation were offered as a measure of danger. The City uses paid status to identify an arranged presentation under the organizer's control. The accompanying schedule then supplies the facts relevant to audience movement. That administrable coverage choice differs from judging a message and deserves appellate review under the standard for content-neutral public-space rules.

Direct logistical questions are useful, but they do not make identity and a short program description irrelevant in every circumstance. Staff must connect an amendment to the approved schedule, communicate about the expected audience, and determine whether a substitution preserves the represented format. A neutral description need not reveal an ideological position. The City has offered an enforceable deadline and written explanation for its review.

Rule 65(d) is not merely cosmetic. The operative restraint names the entire ordinance while preserving overlapping authority in general categories. A nonparty employee receiving notice should be able to determine prohibited conduct from the order's precise terms. Rule 65(c) likewise requires an explicit security determination, even if the amount ultimately is modest. The original order contains none.

The Guild proposes correction while protection remains unchanged. That is one possible appellate remedy, but it confirms a substantial probability that the order as entered cannot stand untouched. A limited stay would prevent the present defects from governing a live event before corrective instructions issue.

The Interim Balance Supports a Defined Administrative Process

The Guild lists safety measures still available, but the City's injury includes deciding which information and condition belongs to those preserved powers. The distinction becomes consequential when a late author may change audience size even if the chair arrangement and clock time remain constant. Officials need authority to ask neutral follow-up questions and issue a prompt written conclusion without an immediate dispute over contempt.

The City accepts that author opportunities are perishable. It therefore proposes a three-business-day decision period, a brief viewpoint-neutral description, no request for a script or affiliation, written operational reasons, and immediate judicial access. It also offered partial relief that leaves the \$45 increment suspended. Those conditions are more protective than an unqualified return to ordinary administration.

The Guild's six dates make continuity important to both sides. They also mean a single broad injunction will govern changing seasonal circumstances. A reviewable process for amendments is preferable to an assumption that every speaker-only substitution lacks operational effect or that every change justifies restriction. The proposed order directs attention to actual attendance, timing, format, location, equipment, and resource conflicts.

Public safety is not invoked as a slogan. The record is peaceful, and the City relies on routine responsibilities rather than anticipated disorder. Expression is equally concrete. A limited stay can suspend speaker fees, forbid viewpoint inquiry, and require fast decisions while preserving enough structure for the shared use of Cedar Commons.

Requested Disposition

The City respectfully asks the Court to stay the January 23 preliminary injunction pending disposition of this appeal. If full relief is not warranted, the Court should enter a partial stay permitting administration of speaker identification, a short format or topic description, time, location, equipment, and expected-audience fields while suspending the per-speaker assessment. Any condition should identify the event fact supporting it and be communicated in writing.

As a further alternative, the Court may enter a brief administrative stay while it resolves the motion and directs expedited merits scheduling. The City will decide any February program amendment within three business days after receiving the information reasonably needed to evaluate its operational effect. It will not consider agreement with a speaker, demand a manuscript, or seek retroactive fees for conduct protected by a court order.

These alternatives preserve the appeal without representing that the City has prevailed on the constitutional merits. They give the Guild a usable response period and give officials an ascertainable framework. If an actual condition threatens a presentation, the parties can return with the written decision rather than debate hypothetical applications.

Counsel certifies electronic filing and service on February 5, 2026. No evidence outside the district materials accompanies this reply. The City continues to preserve all event communications and will obey the January 23 injunction unless and until this Court directs otherwise. Respectfully submitted for appellant City of Norvale by Municipal Appellate Counsel.